



COUNTY OF SONOMA

575 ADMINISTRATION
DRIVE, ROOM 102A
SANTA ROSA, CA 95403

SUMMARY REPORT

Agenda Date: 9/24/2019

To: Board of Supervisors

Department or Agency Name(s): Transportation and Public Works

Staff Name and Phone Number: Johannes J. Hoevertsz 707-565-2231

Vote Requirement: Majority

Supervisorial District(s): All

Title:

Regional Solid Waste Planning

Recommended Action:

Accept the annual report for the period April 1, 2018 to March 31, 2019 from Republic Services of Sonoma County, Inc.

Executive Summary:

The Department of Transportation and Public Works (TPW) is recommending that the Board accept the annual report from Republic Services of Sonoma County, Inc. ("Republic"). Under the terms of the Master Operations Agreement (MOA), Republic is required to present an annual report on the progress made toward achieving the goals established in the Master Operations Agreement, including diversion goals, greenhouse gas reductions, commercial food waste program diversion, and any new activities and/or programs in the MOA.

Discussion:

The MOA is the product of the three-year County City Solid Waste Advisory Group, a collaborative process between the Cities, the County and a diverse group of public stakeholders. The Board of Supervisors launched the public process in December 2009 to build consensus regarding Sonoma County's long-term solid waste and recycling strategy. The provisions of the MOA were carefully crafted to accomplish fundamental goals to create a system that provides:

1. Increased diversion; decreased landfill disposal.
2. Public ownership for "local control;" private operations for "economic efficiencies."
3. No pre-set volume (put-or-pay) disposal commitments, which supports increased diversion and local flexibility.
4. Long term liability relief for closure, post-closure, and unforeseen environmental liabilities at the Central Landfill site.
5. A sustainable rate model that works with high levels of waste diversion.
6. In-county landfill to end reliance on outhaul export of Sonoma County trash.

7. Quantifiable greenhouse gas (GHG) reductions.
8. Ongoing funding for education, household hazardous waste, and other programs.
9. Ongoing funding source for closed county landfill sites.

On April 1, 2015, the MOA became effective and Republic began operating the County solid waste facilities. Section 11.9 of the MOA requires Republic to submit an annual report to the County and present a report to the Board of Supervisors on the progress made toward achieving the goals established in the MOA.

Annual Report of Progress of Goals

Diversion

The annual diversion goal of 67,000 tons became effective April 1, 2018, once the Material Recovery Facility (MRF) had been operational for one year. The MRF is a plant that receives, separates, and prepares recyclable materials for marketing to end-user manufacturers.

Total diversion tonnage was 68,315 this year as compared to 27,662 tons during the prior year.

Greenhouse Gas (GHG) Reductions

This GHG inventory represents a snapshot of GHG emissions from the Site in 2014, 2017, and 2018. Landfill Gas (LFG)-derived GHG emissions would have occurred as a result of placement of the waste at any landfill facility in the region. However, because of additional waste placement and subsequent LFG generation, GHG emissions from LFG increased from 2014 to 2018. Transportation emissions are higher for the 2018 inventory due to the large increase in the volume of waste generated in the county due to wildfires in 2017. Total site-wide GHG emissions are down in 2018 relative to 2017.

The primary contributor to the GHG emissions reduction at the landfill was waste diversion. The construction of the MRF and other recycling efforts helped divert and reduce the amount of waste disposed at the landfill, thus minimizing the amount of methane gas generated at the landfill.

Commercial Food Waste Program

The Commercial Food Waste Program offers businesses an option to divert food waste at no additional charge. 5,879 tons were diverted through the program during April 1, 2018 - March 31, 2019 up from 4,332 tons during the prior year. The program is promoted by a nine member "Waste Zero Team" via newsletters, social media, brochures, and other targeted outreach efforts.

Other Items of Interest:

1. Recycletown

To support compliance with Clean Water Act standards, Republic intends to close Recycletown operations at the Healdsburg transfer station and reduce operations at the Central Disposal Site by the end of 2019. County staff have evaluated the proposal and concur that the existing Recycletown

facilities would require significant investment to mitigate related compliance risks and that, on balance, this investment is unwarranted in light of available alternatives. For example, similar material re-use facilities are also available at other locations, such as Salvation Army, Goodwill, Crossing the Jordan & Sutter Hospice.

2. MOA Amendment Discussions

TPW is currently engaged in negotiations with Republic Services to amend the MOA to clarify concerns, including the extent to which concession fees are due on disaster debris. To facilitate administration of the MOA, the proposed amendment will also consolidate the original agreement and both prior amendments into a common “amended and restated” agreement so that the operative terms are all contained in a single document. TPW expects the amendment to the MOA to be presented to the Board for approval as soon as possible in 2019.

3. Republic Services Purchase of Global Materials

In the last year, Republic Services purchased Global Materials Recovery Services, formerly owned and operated by Industrial Carting Services. Republic’s purchase of this solid waste facility does not impact the MOA.

4. Planning for Future Disasters

TPW is in the process of preparing an RFP for disaster debris disposal and removal services. We anticipate release of the RFP before the end of 2019 so that “on-call” disaster service contracts are in place in early 2020.

Prior Board Actions:

05/02/17 Board received annual report for the period January 1, 2016 to December 31, 2016 from Republic Services of Sonoma County, Inc., required under the terms of the Master Operations Agreement.

07/19/16: Board received annual report for the period April 1, 2015 to March 31, 2016 from Republic Services.

03/01/16: Board approved the Second Amendment to the Master Operations Agreement (MOA) to allow full access to the reuse area at the Sonoma Transfer Station and for reimbursement of up to \$500,000 to Republic for purchasing and installing storm water equipment.

03/03/15: Board approved the First Amendment to the MOA, the Landfill Settlement Agreement between the County and the Cities, the Limited Term Indemnity Agreement with Republic Services Related to Composting Operations, and the Joint Defense and Indemnity Agreement with Sonoma County Waste Management Agency.

10/26/10: Board approved developing a regional long-term solid waste option.

12/8/09: Board approved and authorized relate of the Request for Proposals (RFP) for Short-Term Transfer Station Operations, Transportation and Disposal Services.

FISCAL SUMMARY

Expenditures	FY 19-20 Adopted	FY20-21 Projected	FY 21-22 Projected
Budgeted Expenses			
Additional Appropriation Requested			
Total Expenditures			
Funding Sources			
General Fund/WA GF			
State/Federal			
Fees/Other			
Use of Fund Balance			
Contingencies			
Total Sources			

Narrative Explanation of Fiscal Impacts:

None

Staffing Impacts:			
Position Title (Payroll Classification)	Monthly Salary Range (A-I Step)	Additions (Number)	Deletions (Number)

Narrative Explanation of Staffing Impacts (If Required):

None

Attachments:

Presentation

Related Items “On File” with the Clerk of the Board:

Master Operations Agreement; 1st and 2nd Amendment to the Master Operations Agreement